

STATE OF NEW YORK

7464--A

2025-2026 Regular Sessions

IN ASSEMBLY

March 28, 2025

Introduced by M. of A. STIRPE, EACHUS, LUPARDO, MAGNARELLI, STERN --
read once and referred to the Committee on Economic Development --
committee discharged, bill amended, ordered reprinted as amended and
recommitted to said committee

AN ACT to amend the alcoholic beverage control law, in relation to
permitting certain retail licensees to purchase wine and liquor from
certain other retail licensees

The People of the State of New York, represented in Senate and Assem-
bly, do enact as follows:

1 Section 1. Section 106 of the alcoholic beverage control law is
2 amended by adding a new subdivision 2-b to read as follows:

3 2-b. Notwithstanding any provision of this chapter to the contrary, a
4 retail licensee for on-premises consumption shall be authorized to
5 purchase up to twelve bottles of wine and liquor per week from an off-
6 premises retail licensee, and may resell any wine and liquor so
7 purchased for consumption on the premises licensed therefor.

8 § 2. Section 105 of the alcoholic beverage control law is amended by
9 adding a new subdivision 2 to read as follows:

10 2. (a) Notwithstanding any provision of this chapter to the contrary,
11 a retail licensee to sell liquor and/or wine for consumption off the
12 premises shall be authorized to sell up to twelve bottles of wine and
13 liquor per week to a retail licensee for on-premises consumption.

14 (b) A retail licensee for on-premises consumption shall retain
15 evidence of each purchase of wine and liquor from a retailer licensed to
16 sell liquor and/or wine for consumption off the premises in the form of
17 a purchase receipt showing the name of the retailer, the date of
18 purchase, a description of the alcohol beverages purchased, and the
19 price paid for the alcohol beverages. The retail licensee for on-premis-
20 es consumption shall retain the receipt and make it available for
21 inspection by the state liquor authority and its duly authorized agents
22 and employees.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD00041-03-5

1 § 3. This act shall take effect on the ninetieth day after it shall
2 have become a law. Effective immediately, the addition, amendment and/or
3 repeal of any rule or regulation necessary for the implementation of
4 this act on its effective date are authorized to be made and completed
5 on or before such effective date.